

433 WEST 34th ST. OWNERS CORP.
Alteration Checklist, Procedures and Acknowledgement

Re: Apartment # _____
Alteration Procedures
433 W. 34th Street, New York, NY

Dear Shareholder:

Pursuant to your inquiry regarding an alteration to your apartment, the board has listed below the necessary documents that must be submitted to the office of the Managing Agent in order for the review and approval of your alteration application:

1. Sketch, architectural drawings or blueprints of work to be done.
2. Executed Procedure Acknowledgement (**attached – see page 2**)
3. Executed and Completion of Alteration Narrative – Letter of Intent (**attached – see page 3**)
4. Alteration Agreement (form enclosed – executable copy will be completed after board approval)
5. Certificate of Insurance from general contractor naming 433 WEST 34th ST. OWNERS CORP., its Officers & Directors, Orsid Realty Corp., Terra Holdings and all named shareholders/unit owners of your apartment, as additional insureds in the minimum amounts of 1,000,000 bodily injury and \$1,000,000 property damage. \$5,000,000 Umbrella Insurance. Statutory workers comp.
6. Copy of the plumber and electricians license front and back (if applicable to work)
7. Copy of letters to surrounding neighbors (up, down and both sides) notifying them of the alteration.
8. Security Deposit Escrow payable to 433 WEST 34th ST. OWNERS CORP. in the amount equal to the greater of (i) \$2,000 or (ii) 10% of the projected cost of the work, payable to 433 West 34th
9. Street Owners Corp.
10. Completed W9 form (attached) (reports any interest from deposited security)
11. Dept. of Buildings Permit (if applicable)

NOTE: SUBMISSION OF PLANS (OR SKETCHES), FEES AND ALTERATION NARRATIVE WILL ENABLE THE REVIEWING ARCHITECT TO BEGIN PROCESSING YOUR APPLICATION. OTHER DOCUMENTS SHOULD BE SUPPLIED AS QUICKLY AS POSSIBLE THEREAFTER.

AGREED AND ACCEPTED:

MEMORANDUM

TO: All Shareholders
433 West 34th Street

FROM: Board of Directors,
433 West 34th Street

RE: APPLICATION PACKAGE FOR ALTERATIONS

Pursuant to the Proprietary Lease, all major repairs, improvements, and alterations (individually or together, “Alterations”) must be approved by the Board of Directors prior to commencing the work. **To submit an Alteration for approval, you must first submit the below Phase 1 Documents. Once the Phase 1 Documents are approved and you receive permission to proceed from the DOB, then you should submit the Phase 2 Documents. Together, the Phase 1 and Phase 2 Documents are referred to as the “Alteration Application.”**

Phase 1 Documents:

- Standard Alteration Agreement
- Addendum A: Typical Requirements
- Addendum B: Project Summary
- Addendum C: Assumption of Alteration Agreement

Phase 2 Documents:

- Addendum D: Contractor Information
- Addendum E: Contractor Insurance
- Addendum F: Contractor Indemnity Agreement

In addition to the Alteration Application, please submit the following checks:

- **A check for the security deposit**, in an amount equal to the greater of (i) \$2,000 or (ii) 10% of the projected cost of the work, payable to 433 West 34th Street Owners Corp.

* * *

Decoration Projects: These are projects that do not involve major construction work. Such projects require completion of the Simple Form for Apartment Alterations (available from management). Decoration Projects require a refundable security deposit of \$1,000 payable to 433 West 34th Street Owners Corp.

All products used in Decoration Projects must meet the same standards required in alteration projects. Examples of decoration projects include the following:

- Painting and Plastering
- Floor refinishing
- Carpeting
- Replacement of appliances in kind and at same location
- Replacement of toilets, lavatories, and sinks at same locations as existing, without disturbing finishes (must be replaced by a licensed plumber)
- Replacement of electrical devices (outlets and switches) at same location as existing with no change in wiring (must be replaced by a licensed electrician)

* * *

The above forms and security deposit and, if required, management fee, must be submitted to building management at the below address:

**Allison Amendolare
Orsid Realty Corp.
156 West 56th St, 6th Floor
New York, NY 10019**

You will receive a fully executed copy of the Alteration Application once your alteration plans have been approved by the Board of Directors.

DO NOT ASSUME THAT YOUR ALTERATION APPLICATION IS APPROVED IF YOU HAVE NOT RECEIVED WRITTEN NOTIFICATION FROM MANAGEMENT. CONTRACTORS THAT ARRIVE AT THE BUILDING WITHOUT BEING PRE-APPROVED AND LOGGED INTO BUILDING LINK WILL BE TURNED AWAY.

****Plumbing shutdowns are only allowed Tuesdays, Wednesdays and Thursdays, and requests must be received 48-72 hours in advance****

Sincerely,

Board of Directors
433 West 34th Street Owners Corp.

STANDARD ALTERATION AGREEMENT

THIS AGREEMENT, made as of this _____ day of _____, between **433 West 34th Street Owners Corp.** (the “Corporation”) with an address c/o Orsid Realty Corp. d/b/a Orsid New York 156 West 56th St. New York, NY 10019 and _____ (the “Shareholder”) having a mailing address of _____.

W I T N E S S E T H:

WHEREAS, the Shareholder desires to install equipment and/or make alterations in apartment (_____) (the “Apartment”) at 433 West 34th Street, New York, New York) (the building and the premises shall be referred to as “Building”);

WHEREAS, the proprietary lease (the “Lease”) between the Shareholder and the Corporation provides that no equipment shall be installed and no alterations shall be made in the Apartment without the consent of the Corporation; and

WHEREAS, the Shareholder desires to obtain such consent;

NOW, THEREFORE, the parties agree as follows:

- 1) **Shareholder’s Submissions.** Together with a signed copy of this Standard Alteration Agreement (the “Agreement”), Shareholder is delivering to the Corporation:
 - a) A check in an amount equal to the greater of (i) \$2,000.00 or (ii) 10% of the projected cost of the work, payable to 433 West 34th Street Owners Corp. for the security deposit required to be posted by the Shareholder as provided for in Section 15 of this Agreement.
 - b) Evidence of Shareholder’s current liability insurance policy.
 - c) Addendums A, B, and C (together with the Agreement, the “Phase One Documents”) and Addendums D, E, and F (the “Phase Two Documents”).
- 2) **Review of Plans, Drawings and Specification.** The plans, drawings and specifications submitted by the Shareholder shall be subject to review and approval by the Corporation and its architect or engineer (the “Corporation’s Designated Engineer”), and the Shareholder shall make such changes in and to such plans, drawings and specifications as the Corporation or the Corporation’s Designated Engineer shall require in order to obtain such approval. The term “Plans” as used in this Agreement shall refer to the plans, drawings and specifications as approved in writing by the Corporation and the Corporation’s Designated Engineer. The Plans

are attached hereto as part of Addendum B and incorporated herein and made a part of this Agreement and the term “Work” shall refer to the work called for by the Plans or any other work performed by or on behalf of the Shareholder. After approval by the Corporation and the Corporation’s Designated Engineer, the Plans shall not be modified without the approval of the Corporation and the Corporation’s Designated Engineer. Notwithstanding any approval of the Plans by the Corporation or the Corporation’s Designated Engineer, the Shareholder shall be solely responsible for the Plans, for ensuring compatibility with the systems and facilities of the Building, and for compliance with applicable laws and codes.

- 3) **Pre-Conditions to Commencement of Work by Shareholder**. The Shareholder shall not commence the Work unless and until all of the following has occurred:
- a) The Corporation and the Corporation’s Designated Engineer shall have approved in writing the plans, drawings and specifications submitted by the Shareholder, and the Shareholder shall have received notification of such approval(s) in writing.
 - b) The Shareholder shall have made all required filings with, and received all required permits, approvals, licenses and consents from, all governmental agencies having jurisdiction over the Work including, but not limited to, the New York City Buildings Department, the New York City Fire Department and the Landmarks Preservation Commission, and the Shareholder shall have furnished copies of all such filings, permits, approvals, licenses and consents to the Corporation. The determination of the Corporation’s Designated Engineer as to the need for any such filing, permit, approval, license or consent shall be conclusive.
 - c) In addition to providing to the Corporation a copy of Shareholder’s current liability insurance policy, the Shareholder shall have caused each of its contractors to furnish to the Corporation the insurance policies described on Addendum E attached hereto and incorporated herein and made a part of this Agreement, or in the sole discretion of the Corporation, the certificates thereof. All policies, including the Shareholder’s liability policy, shall (i) name the Corporation, the Corporation’s officers, directors and shareholders, the shareholder(s) below and adjacent to the Shareholder’s Apartment, the Corporation’s Designated Engineer, Orsid Realty Corp. d/b/a Orsid New York (“the Managing Agent”) and the Shareholder, as parties insured, (ii) be issued by companies reasonably acceptable to the Corporation; and (iii) provide that they may not be modified, cancelled, or terminated without at least ten (10) days prior written notice to the Corporation. The Shareholder shall cause all such insurance policies to be kept in full force and effect until the completion of the Work.
 - d) Shareholder shall furnish Corporation with a letter from a licensed engineer, architect or other licensed professional acceptable to Corporation certifying that: a) the electrical loads required as a result of the alterations will not be in excess of the present electrical capacity of the Apartment or the electrical supply thereto; b) the alterations will not interfere or overload existing Building systems such as, but not limited to, heating and plumbing systems, or c) adversely affect the Building structure.

- e) Shareholder shall provide Corporation with a complete and conformed copy of every agreement made with contractors and suppliers immediately after same are made.
 - f) Shareholder shall provide Corporation with a satisfactory pre-construction survey with respect to conditions in adjoining common areas and apartments above, below and adjacent to the Work, to the extent same may be affected by the Work.
 - g) Shareholder shall provide Corporation with evidence of EPA Lead certification of its contractors and/or workers in accordance with Local Law 1 of 2004.
 - h) The Corporation, in its sole discretion, may modify requirements concerning the level or type of insurance required for contractors.
- 4) **Shareholder to Give Notice Prior to Commencement of Work.** Prior to commencing the Work, the Shareholder shall give at least three business (3) days' prior written notice to the Corporation's Designated Engineer, the residents of the apartments above, below and adjacent to Shareholder, the superintendent of the building (the "Superintendent") and the Managing Agent of the date on which the Work will commence and the estimated duration of the Work and by such writing Shareholder is indemnifying them for any damage whatsoever. Copies of each letter will be delivered to the Managing Agent before the commencement of the Work.

5) **Performance of the Work.**

- a) **In General.** The Shareholder shall perform the Work strictly in accordance with the Plans and shall not perform any Work not called for by the Plans. Work shall be performed only by Contractors pre-approved by the Corporation or the Managing Agent. In performing the Work, the Shareholder shall comply with (i) all applicable laws and codes; (ii) the requirements of all insurance policies covering the Work, the Apartment or the Building; (iii) this Agreement; (iv) the Lease; (v) the House Rules; (vi) the requirements of the Corporation; and (vii) any directions given by the Managing Agent, the Corporation's Designated Engineer or the Superintendent. The proposed alterations, structural changes and materials used shall be of the quality and style keeping with the general character of the Building as determined by the Corporation, the Corporation's Designated Engineer, or the Managing Agent, and the Work will be carried out by Shareholder and Shareholder's representatives in a proper, expeditious and workmanlike manner. The Work shall conform to rules and regulations of the governmental authorities having jurisdiction as well as New York Board of Fire Underwriters. The Work shall be performed in compliance with any and all rules and regulations as may be promulgated by the Corporation's Board of Directors ("Board"), Managing Agent or Superintendent from time to time. Shareholder shall contact the Superintendent to coordinate access to the Building for Shareholder's contractor(s).
- b) **Work Hours and Noise.** The Shareholder shall perform the Work diligently and in a manner so as not to disturb other residents of the Building. Shareholder shall immediately discontinue any work in progress upon receiving notice from the Managing Agent or an appropriately designated Building employee that the Work is, at that time, creating a disturbance to any other occupants in the Building. The use of power tools, such as electric

hammers and pneumatic hammers or drills, and similar tools is prohibited unless expressly authorized by the Corporation. The Work shall be performed only on Mondays through Fridays (excluding holidays) between the hours of 9 a.m. and 4:30 p.m., and all workers must leave the Building by 4:30 p.m. The Corporation shall be the sole arbiter should there be any doubt as to noise levels which may be disturbing.

- c) **Labor Harmony.** The Shareholder shall cause its contractors and subcontractors to employ only such laborers as shall not conflict with any of the trade unions employed in the Building or otherwise cause disharmony with any Building service union. The Corporation shall be the sole arbiter concerning labor harmony.
- d) **Required Completion Date.** The Shareholder shall cause the Work (other than decorative work such as painting, wallpapering and carpeting) to be completed on or before the date indicated in Addendum B, Project Summary (the "Required Completion Date"). Under no circumstance can the Apartment be left unfinished in an unsafe condition or one that might adversely affect the Building systems or a neighboring apartment or a condition that creates a nuisance to the Building's residents. If the Work (other than decorative work as aforesaid) shall not be completed on or before the Required Completion Date, the Shareholder shall pay to the Corporation, as liquidated damages on account of late completion, the sum of \$250 per day (excluding weekends and holidays) until the Work is completed. Notwithstanding anything contained herein to the contrary, nothing herein shall limit or prohibit Corporation from requiring Shareholder to cease all Work on the Required Completion Date or any date thereafter. The determination of the Commencement Date and of whether the Work is completed shall be made by the Corporation, and the Corporation's determination shall be conclusive. Addendum A is attached hereto and incorporated and made a part hereof. Addendum A contains the time periods for the components of Work to be performed as set forth on the schedule of the contractors and subcontractors. Extensions to the Required Completion Date, if requested in writing by the Shareholder, maybe granted by Corporation at its sole discretion.
- e) **Evidence of Completion.** Upon completion of the Work, the Shareholder shall obtain and deliver to the Corporation (i) a certificate from the architect or engineer who prepared the Plans certifying that the Work has been completed in accordance with all applicable laws and codes and the Plans, and (ii) all required final governmental signoffs and approvals, including if the Corporation shall require, an amended certificate of occupancy and a certificate from the Board of Fire Underwriters. The determination of the Corporation as to the need for an amended certificate of occupancy shall be conclusive.
- f) **Liens.** Upon the completion of and Shareholder's payment for the Work or any part thereof, Shareholder shall procure from its contractor and sub-contractors, at Shareholder's sole cost and expense, and submit to Corporation for its approval, the contractor's written agreement waiving the right to file any mechanic's liens, attachments or encumbrances against the Building which may arise out of or in connection with the Work. Proof that the contractor has obtained similar waivers from all subcontractors shall be submitted to the Corporation. Shareholder shall cause all Work to cease upon written notice from Corporation or its Managing Agent that contractor has not provided lien waivers as provided for herein. If one or more mechanic's liens are filed in connection with the Work,

Shareholder shall cause such lien or liens to be discharged within ten (10) days of the filing thereof. If Shareholder fails to so discharge any mechanic's lien, the Corporation shall be entitled to exercise any and all rights and remedies it may have under the Lease and/or applicable law. Shareholder agrees to indemnify the Corporation and hold it, its directors and officers, the Building, and the Managing Agent harmless from and against any and all claims, costs, liabilities, damages, losses, causes of action, judgments and/or expenses of any nature whatsoever (including without limitation, reasonable attorney's fees and disbursements) which either the Managing Agent or the Corporation may incur by reason of the filing of a mechanic's lien.

- 6) **Inspection and Correction of the Work.** The Corporation shall have the right from time to time to inspect or observe the Work, and for this purpose the Shareholder shall provide access to the Apartment to Corporation's Designated Engineer, the Managing Agent, the Superintendent, or any other person the Corporation may authorize. The Shareholder at its sole cost and expense shall promptly make all corrections required by the Corporation in order to conform to applicable laws, the Plans, and the other requirements of this Agreement. If the Corporation so requires, such corrections shall include the removal and replacement of non-conforming Work. The Corporation may require that all Work cease if it determines shareholder or its contractors, workmen, or agents are not in compliance with this Agreement. The Corporation's failure to inspect shall not be considered a waiver of the Shareholder's obligation to comply with this Agreement or of Corporation's rights and remedies. If Shareholder fails to promptly correct any Work rejected by the Corporation as violating any laws, defective, or failing to conform to the Plans, Shareholder shall provide the Corporation, the Managing Agent, building employees and other Corporation representatives with unrestricted access to, and ingress and egress through, the Apartment or any portion thereof in order to make repairs, alterations, additions and improvements in and to the Building as may be deemed necessary or advisable by the Corporation. Any increase in the cost of such repair, alteration, addition or improvement resulting from the Work shall be borne by Shareholder and paid to the Corporation on demand. If, in connection with any such repair, restoration, addition or improvement, any portion of the Apartment shall be damaged, the Corporation shall not be liable therefor unless same is occasioned by reason of Corporation's or Corporation's agents' or employees' gross negligence. Nothing herein shall limit or waive any of Corporation's rights, remedies and privileges as set forth in the Lease or By-Laws of the Corporation or elsewhere.
- 7) **Damage or Adverse Effect Caused by the Work.** The Shareholder shall be responsible for any damage to or any other adverse effect upon the Apartment or the Building (including the structure, shell, systems, equipment, fixtures and finishes of the Building or any other apartment or its contents) caused by or resulting from the Work, regardless of when such damage or adverse effect becomes apparent. If any such damage or adverse effect shall occur or arise, the Corporation may (i) require the Shareholder, at its expense, promptly to repair the damage or remedy the condition giving rise to such adverse effect and/or (ii) repair such damage or remedy such condition at the Shareholder's expense.
 - a) Without limiting the generality of the foregoing, the Shareholder specifically acknowledges that this Section 7 shall be applicable to any damage to the floors, carpeting, wall coverings or other finishes in the Building's hallways, elevators and other common

areas (including without limitation, the cost of cleaning, shampooing, painting or repairing the same if soiled or otherwise damaged).

- b) If the Managing Agent advises the Shareholder of any damage which, in the Managing Agent's opinion, was caused by the Work, the Shareholder shall promptly submit a claim to the Shareholder's insurance carrier and to Shareholder's contractor for submission to its insurance carrier, and the Shareholder agrees to use all reasonable efforts, and to cause the contractor to use all reasonable efforts, to cause such insurance carriers to expeditiously review and settle all such claims for which they are responsible. The provisions of this paragraph shall not limit the Shareholder's liability under this Section 7 or any other section.

- 8) **Indemnification by Shareholder.** In addition to the indemnities otherwise provided herein, and to the maximum extent permitted by law, The Shareholder shall indemnify and hold harmless tin he Corporation, the Corporation's officers, directors and shareholders, the Corporation's Designated Engineer, the Managing Agent and the other residents of the Building (the "Indemnified Persons") against any loss, cost, claim, damage (including damage to persons or property) or expense arising out of or related to the Work or any act or omission of the Shareholder or any of its contractors, subcontractors, architects, engineers or consultants, including reasonable attorney's fees and disbursements incurred by any of the Indemnified Personas in the defense of any such claim or any suit, action or proceeding based thereon. However, notwithstanding anything to the contrary herein, the Shareholder's obligations pursuant to this paragraph shall be limited by the application of the provisions of the New York State General Obligations Law, as are now in effect and may be amended from time to time.

- 9) **Shareholder to Bear All Costs Associated with Work.** The Shareholder shall be responsible for all costs incurred by the Shareholder or the Corporation in connection with the Work or this Agreement, including the fees and disbursements of any attorney, architect, engineer or consultant retained by the Corporation in connection with the Work or this Agreement. Without limiting the generality of the foregoing, the Shareholder specifically agrees to reimburse the Corporation for all charges of the Corporation's Designated Engineer for the review of the plans, drawings and specifications submitted by the Shareholder, for inspection of the Work or otherwise related to the Work or this Agreement, whether or not the Plans are approved or the Work is completed.

10) Additional Requirements.

- a) **Use of Public and Common Areas During Work.** The Shareholder shall not allow the halls, sidewalks, courtyards and other public areas to be used for the storage of building materials or debris. The Shareholder shall cause its contractor to cover with construction paper the floor of any hall to be used in connection with the Work and shall also cause its contractor to take all precautions necessary to prevent damage to the floor, carpeting, wall coverings or other finishes in the Building's hallways, elevators and other common areas.

- b) **Shareholder to Control Refuse, Dirt, Dust.** Shareholder shall take all precautions to prevent dirt and dust from permeating other parts of the Building during the progress of the Work, and shall place all materials and rubbish in sealed barrels or double bags before removing the same from the Apartment. All such barrels and bags and all rubbish, rubble, discarded equipment, empty packing cartons and other materials shall be removed from the Apartment and taken out of the Building at Shareholder's expense. Shareholder must obtain elevator protection pads and Masonite and properly protect the elevator prior to the removal of any refuse through the elevator. Shareholder recognizes that only the service elevator may be used for such removal and only at such times as the Superintendent may direct. Shareholder shall not permit any dumpster or garbage container to be left overnight in front of the Building. Notwithstanding the foregoing, the placement of any dumpsters shall comply with all governmental regulations, including without limitation, obtaining any necessary permits. Shareholder shall ensure that entrance door is covered with zipper access plastic and provide a foot guard to for wiping feet before entering the hallways.
 - c) **Shareholder Responsible for Additional Labor Costs.** Shareholder agrees to bear all costs to the extent that any regular or added Building personnel are required to render services as a result of the Work, the expense of such time, including any wages, overtime pay and additional payroll taxes and benefits that result therefrom.
 - d) **Safety.** During the Work, one light in the Apartment will be left on for 24 hours each day to assist anyone who might be responding to an emergency. Shareholder will ensure that the contractor maintains no less than two, fully charged, 20lb ABC fire extinguishers, a complete first aid kit, active smoke detectors and toilet facilities in the Apartment.
 - e) **Sign In.** Prior to entering the Building each day, contractors, subcontractors and/or workers engaged in the Work will be required to sign the Building Link daily log maintained by the Building's maintenance staff.
 - f) **Access Key.** Shareholder will provide to the Superintendent an access key to the Apartment. House Rules require an access key be left at the front desk in the key storage box at all times.
 - g) **Quality and Style.** The quality and style of all work shall be in keeping with the general character of the Building.
- 11) **Lead-Based Paint.** Without limiting the applicability to other buildings, the Federal Task Force on Lead-Based Paint Hazard Reduction has recommended and Local Law 1 of 2004 of the City of New York requires in all buildings erected prior to January 1, 1960 certain maintenance practices, including (i) limiting access to the work area to only workers, (ii) isolating the work area with polyethylene plastic or equivalent, (iii) protecting the workers, (iv) protecting the Shareholder's belongings by covering or removing them from the work area, (v) wetting the painted surfaces before disturbing the paint and (vi) wetting the debris before sweeping. The Task Force has indicated that certain removal practices are unsafe, including (i) open flame burning, (ii) power sanding or sandblasting (unless a special vacuum attachment is used to contain dust), and (iii) dry scraping more than a de minimis surface area (de minimis means an area of less than one square foot per room). The Shareholder shall cause the

Shareholder's contractors and/or workers to perform the Work consistently with the recommendations of the Task Force and Local Law 1 of 2004, as amended and other applicable laws relating to the removal of lead-based paint, and shall upon completion of the Work perform specialized cleaning of the work area using methods designed to safely remove dust and debris which may contain lead. No more than sixty (60) days prior to beginning renovation activities in the Apartment, the Shareholder shall cause its contractor to provide to the Shareholder and any other occupant of the Apartment with the Environmental Protection Agency (the "EPA") pamphlet entitled, Protecting Your Family from Lead in the Home, (the "Pamphlet"), and the Shareholder shall furnish the Contractor with a written acknowledgement of receipt. The Shareholder hereby acknowledges that the Corporation has no liability or obligation in connection with this notification requirement of the EPA. Shareholder shall obtain clearance dust tests by a third party and maintain all records of the Work for a period of ten (10) years from completion of the Work and will provide copies of such records to the Corporation, the Managing Agent and Shareholder's successor-in-interest to the Apartment as required by Local Law 1 of 2004. Without limiting Shareholder's obligations under Local Law 1 of 2004, Shareholder's contractors will take all precautions to prevent dirt and dust and limit smells from permeating other parts of the Building during the progress of the Work. Such precautions may, at Corporation's option, include, but are not necessarily limited to, sealing off ventilation registers, windows, doors, penetrations and/or pipe chases, use of HEPA air filters, and/or the use of negative pressure. All materials, including, without limitation, rubbish and rubble, will be placed in sealed barrels or sealed bags before being taken out of the Apartment. All such barrels or bags, discarded equipment, empty packing cartons and other materials will be taken out of the Building and removed from the area of the Building at Shareholder's expense. If Shareholder fails to remove such material, Corporation may do so and Shareholder shall reimburse Corporation for all its costs and expenses incurred in connection therewith. If the Building has a service elevator, Shareholder recognizes that only the service elevator may be used for such removal and only at such times as the Superintendent may direct. If the convenience of other Apartment owners or occupants of the Building requires that the service elevators be operated on an "overtime" basis, Shareholder shall reimburse Corporation for any wages or related expenses incurred in connection therewith. If there is no service elevator, the use of the passenger elevators shall be in the sole discretion of the Corporation, upon such terms and conditions established by the Corporation. All sums which Shareholder may owe to Corporation pursuant to this Paragraph shall be deemed rent due under the Lease.

- i) Shareholder shall strictly comply in a timely fashion with all federal, state and local statutes, laws, rules, regulations and ordinances pertaining to lead control and removal, as the same have been or may hereafter be promulgated, supplemented or amended from time to time prior to and during the Work. In addition, Shareholder agrees to indemnify the Corporation and hold the Corporation harmless from and against any and all damages, losses, claims, liabilities, fines, penalties, costs and expenses (including, without limitation, attorneys' fees and disbursements) arising out or in connection with (a) any failure by Shareholder or any consultant or contractor retained by Shareholder to fully conform to all the foregoing or (b) in the defense of any suite, action, claim, or violation in connection with the lead abatement work or removal.

- ii) Any reference herein to Local Law 1 of 2004 shall include any amendment thereto and any successor or replacement law dealing with lead paint in the City of New York. If while the Work is ongoing, Local Law 1 of 2004 is modified or struck down by any court of competent jurisdiction, Shareholder's obligations hereunder, except as to municipal filing requirements contained in Local Law 1 of 2004, shall remain unchanged, it being understood that the Work to be done hereunder must comply with the substantive provisions and practices as set forth in Local Law 1 of 2004.
- 12) **Asbestos** If the Work involves the demolition, removal, relocation, or alteration of any walls, ceilings, floors, or electrical, plumbing, heating, or ventilation systems, Shareholder hereby agrees to do the following at Shareholder's sole cost and expense prior to the commencement of the Work:
- a) Retain an asbestos investigator selected from a list of approved investigators supplied by the Managing Agent to either:
 - i) Review the building's construction and renovation records as well as any prior inspection reports to determine the existence and possible disturbance of any asbestos containing material ("ACM"); or
 - ii) Inspect the areas to be renovated to determine the existence and possible disturbance of any ACM.
 - b) If the results of the review of investigation subparagraph (a) above reveal the presence of ACM in a friable condition, but said friable ACM is less than 10 square feet or 25 linear feet, Shareholder will present the Managing Agent proof of the investigator's filing of Form ACP5 ("Not an Asbestos Project") form. If the results of the review or investigation reveal that more than 10 square feet or 25 linear feet of ACM is in a friable condition, Shareholder will present the Managing Agent proof of the investigator's filing of Form ACP7 (Asbestos Inspection Report).
 - c) If, in Corporation's sole judgment, based upon the results of the review or investigation in subparagraph (a) above, no abatement work is required, Shareholder will be entitled to commence and perform the Work, subject to all of the terms, covenants and conditions of this Agreement.
 - d) If, in Corporation's sole judgment, the review or investigation in subparagraph (a) above reveals that ACM abatement work is required, Shareholder will proceed as follows:
 - i) Prior to the performance of any ACM abatement work, Shareholder will submit to the Managing Agent the names and qualifications (including any licenses, liability insurance policies and resumes) of any asbestos consultants and contractors Shareholder intends to use for ACM abatement work, along with the names and qualifications (including licenses and insurance policies) of the contractor's haulers and the licenses of all asbestos supervisors and handlers who are to perform the ACM abatement work.

- ii) Upon the receipt of the approval of the Board or the Managing Agent, as the case may be, Shareholder will retain such consultants and contractors to encapsulate, enclose, treat or otherwise abate, as appropriate, all friable ACM. Said abatement, as well as the removal, hauling and disposal of the ACM, shall be performed in strict conformance with all federal, state, and local statutes, laws, rules, regulations and ordinances.
 - iii) In connection with such ACM abatement work, Shareholder will furnish the Managing Agent with copies of all reports and tests that are required by any applicable statutes, laws, rules, regulations and/or ordinances, as well as with a copy of the final report that is to be provided by the ACM consultant.
 - iv) In connection with the ACM removal and disposal, Shareholder will cause the ACM hauler to furnish the Managing Agent with lists of all dump locations to be used, and a certification that the dump sites are EPA approved and, thereafter, Shareholder will furnish to the Managing Agent all dump tickets and disposal manifests.
 - v) Shareholder shall strictly comply in a timely fashion with all federal, state and local statutes, laws, rules, regulations and ordinances pertaining to asbestos control, as the same have been or may hereafter be promulgated, supplemented or amended from time to time prior to and during the Work. In addition, Shareholder agrees to indemnify the Corporation and hold the Corporation harmless from and against any and all damages, losses, claims, liabilities, fines, penalties, costs and expenses (including, without limitation, attorneys' fees and disbursements) arising out or in connection with (a) any failure by Shareholder or any consultant or contractor retained by Shareholder to fully conform to all the foregoing or (b) in the defense of any suite, action, claim, or violation in connection with the ACM abatement work.
- 13) **Shareholder to Comply with Laws, etc.** The Shareholder shall not do or permit any act or thing to be done contrary to law, or which will invalidate or be in conflict with any provision of any liability, casualty or other insurance policies carried by Shareholder or for Shareholder's benefit. The Shareholder shall comply with all federal, state and local laws, rules and regulations pertaining to the Work, including any such laws, rules and regulations pertaining to lead-based paint, asbestos and other hazardous materials.
- 14) **Maintenance and Repair of the Work.** Notwithstanding anything to the contrary contained in the Lease, the Shareholder shall be responsible for the maintenance, repair and replacement of the Work and any portions of the Apartment affected by the Work, and for all costs incurred by the Corporation or the Shareholder in connection therewith. Furthermore, the Shareholder releases the Corporation, the Managing Agent, the Corporation's agents and employees from any liability for damage to the Work or any portion of the Apartment affected by the Work however arising.

Removal of the work In the event that, at any time during or following the completion of the Work, the corporation or its agents or contractors shall require access to, though, under or beyond any area altered by the Work, the Shareholder shall, promptly upon request, remove

such portions of the altered area as shall be necessary so as to provide the needed access. All costs incurred in connection with any removal and, if applicable, any reinstallation or replacement of such portion(s) removed, shall be borne solely by the Shareholder, and neither the Corporation nor the Managing Agent shall have any liability or obligation therefor. Repair, replacement or reinstallation of built-ins, or any paint, wallpaper, floors or other decorative finishes, removed or installed by the Shareholder as part of the Work shall be Shareholder's responsibility, if feasible (as to which the Corporation makes no representation).

- 15) **Shareholder's Security Deposit; Additional Rent Under Lease.** As security for the faithful performance and observance by Shareholder of the terms and conditions of this Agreement, the Shareholder has deposited the sum indicated in Section 1 (b) with the Corporation. The Shareholder agrees that the Corporation may use, apply or retain the whole or any part of the security so deposited and the interest earned thereon, if any, to the extent required for the payment of any sums due to the Corporation under this Agreement. If the deposit is diminished by one-half of the original amount, the Shareholder shall replenish it to the full amount within (3) days after written demand. The Shareholder's failure to so replenish the security deposit shall be a material breach of this Agreement and shall entitle the Corporation to stop the Work, and/or exercise any remedies it has hereunder. If the Shareholder shall comply with all of the terms and conditions of this Agreement, the security deposit and interest or remaining balance thereof, if any, shall be returned to the Shareholder after completion of the Work. The Corporation's release of the security deposit shall not constitute acceptance of the Work by the Corporation or a waiver of any of the Corporation's rights under this Agreement. Any sums due to the Corporation under this Agreement and not recovered by application of the security deposit shall be chargeable as additional rent under the Lease. Shareholder shall be required to fill out a W-9 form for the interest bearing account.

- 16) **Assumption by Purchaser.** The Shareholder (i) shall advise the person or persons to whom it transfers the Apartment ("Purchaser") of the Work undertaken by the Shareholder pursuant to this Agreement; (ii) shall provide copies of the Plans and this Agreement to the Purchaser; and (iii) shall cause the Purchaser to execute and deliver to the Corporation an agreement substantially in the form of Addendum B hereto pursuant to which the Purchaser shall assume all of the obligations of Shareholder under this Agreement, including the obligation under this Section 15 with respect to any transfer of the Apartment by the Purchaser.

The Shareholder hereby waives any claim against the Corporation on account of (i) the Corporation advising a potential Purchaser of the provisions of this Agreement, including this Section 15, and/or (ii) refusing to consent to or register the transfer of the Apartment to such potential Purchaser unless and until such potential Purchaser shall execute and deliver to the Corporation an agreement in the form of Addendum B hereto.

- 17) **Assumption of Responsibility.** Without limiting any other obligations of Shareholder in this Agreement or otherwise, if Shareholder alters the air conditioning, plumbing, heating or ventilation systems serving the Apartment, Shareholder shall assume all responsibility for said alteration and neither the Corporation, nor the Managing Agent will be responsible for failure of the efficient performance of the Apartment heating, cooling, plumbing or ventilation systems as altered by Shareholder. Shareholder understands that the alteration by Shareholder

may void certain guarantees and warranties which currently exist which are applicable to Shareholder.

Shareholder's assumption of responsibility covers: (i) all Work, whether or not structural, weather tightness of windows, exterior walls, roofs, flooring and waterproofing of every part of the Building directly or indirectly affected by the Work; and (ii) maintenance of all heating, plumbing, air conditioning and other equipment installed, altered or in any way affected pursuant hereto both in the Apartment and in the Building. Neither the Corporation nor the Managing Agent will be responsible for failure of performance of Building services or systems to the Apartment as a result of the Work.

18) **Miscellaneous.**

- a) This Agreement and the Lease represent the only agreements between the Corporation and the Shareholder relative to the subject matter hereto. This Agreement may not be changed orally.
- b) This Agreement shall be binding on legal representatives, successors and authorized assigns.
- c) Captions are for the purposes of convenience of reference only and are not to be considered in interpreting this Agreement.
- d) The Corporation and Shareholder waive trial by jury in any action or proceeding under this agreement.
- e) Shareholder releases the Corporation, its directors and officers, and the Managing Agent ("Released Parties") from any and all liability for loss or damage to any of your property which may result or be in any way connected with the Work and waive any claim Shareholder may now or hereafter have against the Released Parties based on interruption or suspension unless due to the Released Parties willful or grossly negligent conduct.
- f) By consenting to the Plans, neither the Corporation nor the Corporation's Designated Engineer make any representation as to the design or efficiency of the proposed alteration, and if the operation of the Building is in any way adversely affected because of said alterations, Shareholder will at his or her expense remove the cause of the problem immediately upon notification by the Corporation or its Managing Agent.
- g) Nothing herein shall limit the rights of the Corporation under the Lease or applicable law or to modify or limit the requirements set forth above.

19) **Shareholder's Breach and Corporation's Remedies.** Any breach by the Shareholder of any of the provisions of this Agreement shall constitute a breach of the Lease and shall entitle the Corporation to exercise all of the rights and remedies therein provided. Without limiting any other provisions of this Agreement, any and all costs, fees and expenses incurred by Corporation arising under this Agreement shall be deemed to be additional rent under the Lease. If Shareholder fails to pay or reimburse the Corporation for same within seven (7) days of demand by the Managing Agent or the Corporation, said nonpayment shall be deemed a

default by Shareholder under and pursuant to the provisions of the Lease and in addition to any and all remedies the Corporation may have hereunder at law or equity, the Corporation may pursue its remedies as are available to it (under and pursuant to the terms and conditions of the Lease or otherwise) based upon such a default. In addition, the Corporation shall also have the right (i) to suspend the Work and prevent workers from entering the Apartment for any purpose other than to remove their tools, and/or (ii) to revoke its consent to the Work, and/or (iii) to exercise any of the rights and remedies provided for herein. The remedies provided for herein and in the Lease shall not be exclusive and the Corporation shall also be entitled to exercise any of the remedies provided by applicable law and the failure of Corporation to enforce any rights or remedies shall not be considered a waiver of shareholder's obligation to comply with this Agreement or of Corporation's rights and remedies.

- 20) **Notice.** Any Notice pursuant to the terms hereof shall be deemed duly given if in writing and sent by registered, or certified mail, return receipt requested, or by overnight mail delivery and a copy sent by regular mail, addressed to Shareholder at the Building or to the Corporation, in care of the Managing Agent Orsid Realty Corp. d/b/a Orsid New York, 156 West 56th St New York, NY 10019. Notice shall be deemed given on the date mailed.

IN WITNESS WHEREOF, Shareholder and the Corporation have executed this Agreement.

Shareholder

Shareholder

By: _____
Management

ADDENDUM A

TYPICAL REQUIREMENTS

The following are the typical requirements that apply to conventional alteration projects; however, these requirements may be changed from time to time by the Corporation, and there will be specific comments by Corporation's Designated Engineer addressed to the particular project. These requirements are provided to allow Shareholder to understand what Plans submitted under Addendum A are likely to be approved.

1) GENERAL REQUIREMENTS FOR ALL ALTERATIONS

- a) Shareholder to comply with laws, rules, and regulations. The Shareholder shall not do or permit any act or thing to be done contrary to law, or which will invalidate or be in conflict with any provision of any liability, casualty, or other insurance policies carried by Shareholder or for Shareholder's benefit. The Shareholder shall comply with all federal, state, and local laws, rules, and regulations pertaining to the work, including any such laws, rules, and regulations pertaining to lead-based paint, asbestos, and other hazardous material.
- b) No cutting or channeling of the building structural floor slab, either top or bottom, will be allowed.
- c) No cutting or removal of load bearing or structural elements, such as beams, columns, or load bearing walls, will be allowed.
- d) No penetrations into the apartment demising walls or shafts will be allowed (except for piping connections approved by the Board).
- e) No piercing of the building facade will be allowed, unless specifically approved in writing.
- f) Branch Piping
- g) No jackhammer or other electrical hammer equipment shall be used unless specifically authorized by the Corporation.
- h) All studs should be metal, not wood, except that wood studs may be used to stiffen door opening.
- i) All rough carpentry employing plywood or wood studs shall be fire retardant type.
- j) Blocking or sealing legally required fire exits will not be permitted.
- k) The Shareholder shall not interfere with the Building's intercom, gas, electric, heating, ventilation, air-conditioning or plumbing system or any other Building system or service.

- l) If consented to by the Corporation, Shareholder shall make all appropriate arrangements with the Managing Agent and the Superintendent at least one week in advance if any of the proposed Work will affect gas, ventilation, plumbing or heating lines when such alteration requires shutting or draining of common risers.
- m) All new and existing plumbing valves and electric junction boxes shall be easily accessible. The Shareholder shall insure that all water, steam, gas and other valves remain accessible to the Managing Agent, Superintendent and Corporation's Architect and/or Engineer during the performance of and after the completion of the Work. If any valve is enclosed in violation of this condition, then the Corporation may (i) require the Shareholder, at its expense, promptly to remove such enclosure and/or (ii) remove such enclosure at the Shareholder's expense
- n) All enclosures of radiators shall be easily removable, or shall have access panels of sufficient size to permit work on shut-off valves, including replacement.
- o) Apartment doors may not be cut.
- p) Where a bathroom or kitchen finished floor is replaced, it shall have a waterproofing membrane below the floor, such as Laticrete 9235 turned up 4" at walls, or equivalent waterproofing membrane with fabric reinforcement. If a bathroom or kitchen floor is to be wood, the Laticrete 9235 may be used at perimeter only, with an epoxy applied over the floor, such as SikaBond T55. Moisture barrier is not to be penetrated.
- q) During kitchen or bathroom renovations, if any, Shareholder shall call in the Superintendent and the Managing Agent to inspect the rooms to ascertain that all newly renovated walls and pipes are snugly fitted so that vermin may not gain entrance. Shareholder understands that this work must be done prior to the installation of any cabinets, fixtures or appliances. The Work may not proceed without this inspection and approval by the Superintendent and the Managing Agent. Shareholder shall grant access to the Apartment during the Work to the Building exterminator when he is in the Building.
- r) If enlargement of a kitchen or bathroom is approved, the entire room shall have a layer of soundproofing below the floor to meet noise transmission requirements that will be dependent on the arrangement -- normally STC/IIC ratings of 59, up to 62.
- s) Wet over Dry installations are prohibited.
- t) Bathroom tiling shall not cover entire wall up to the ceiling so as to allow for access to building plumbing.
- u) New flooring will require noise reduction matting or acceptable alternative
- v) No plaster, grout, paintbrushes, rollers, etc. are to be washed in the apartment tubs or sinks. Use the wet room in the basement.

- w) All material and equipment must be moved or delivered via the service elevator with access through the basement. Arrangements must be made in advance with the Superintendent.

2) PROHIBITED MATERIALS

- a) Lead based paint.
- b) Materials containing asbestos
- c) Combustible rough framing (plywood and wood studs).
- d) Carpet and padding that are not Class A.
- e) Materials with higher VOC content than allowed in New York State or materials with lingering odors.
- f) Suspended ceilings or cabinetry attached to the concrete slab above, unless approved as a part of an alteration project and with approved fasteners.

3) TYPES OF EQUIPMENT ALLOWED

- a) Gas ovens, stoves, and cook tops.
- b) Only energy star rated appliances are permitted.
- c) If electric or convection ovens are proposed, an electric load letter must be submitted to justify electrical capacity.

4) PROHIBITED APPLIANCES, FIXTURES, AND EQUIPMENT

- a) Garbage disposals.
- b) Appliances that are not “Energy Star” rated.
- c) Wall-mounted toilets, unless with written approval of the Board.
- d) Toilets with tanks concealed within walls or pipe chases.
- e) Toilets mounted on offset flanges.
- f) Whirlpool tubs.
- g) Air jet tubs, unless with the written approval of the Corporation.
- h) Saunas.
- i) Steam rooms.
- j) Steam generators.
- k) Humidifiers that supply steam or water into ductwork.
- l) Satellite dish antennas, unless inside the apartment.
- m) Kilns.
- n) Thru wall air conditioning units.
- o) Central air conditioning systems.
- p) Automatic ice making refrigerators

5) PROJECT TYPES TO BE FILED WITH AUTHORITIES

- a) If required by laws, rules, orders, or government regulations, or the Corporation’s Designated Engineer, the Shareholder shall cause the project's licensed Architect or Engineer to file plans, forms, and applications (including any asbestos related forms

required in support of the applications) with, and procure the approvals, permits, licenses, and consents of all governmental agencies having jurisdictions, including but not limited to: NYC Building Department.

- b) The Corporation's Designated Engineer shall make a determination during the course of the alteration review whether the project must be filed with NYC Building Department.
- c) The types of work required to be filed shall include, but not be limited to the following:
 - i) Room partition re-locations.
 - ii) Re-location of kitchen or bathroom fixtures by more than 12".
 - iii) Division of rooms.
 - iv) Suspended ceiling work
 - v) Abatement of asbestos
 - vi) Changing a tub to a shower.
 - vii) Permits may be required for all plumbing and electrical work, whether or not DOB filing is required.

6) **PROJECT TYPES THAT DO NOT NEED TO BE FILED WITH AUTHORITIES**

The following types of work are considered as being an alteration, but are not required to be filed with DOB, unless they are a part of a larger project that requires filing:

- a) Replacement of flooring.
- b) Built-in cabinetry, such as radiator or convector enclosures, and bookcases.
- c) Direct replacement of kitchen or bathroom fixtures, so long as no changes in location, or changes to roughing other than replacing branching back to risers.
- d) New or replaced kitchen or bathroom cabinets.
- e) New or replaced moldings and trim.
- f) Minor partition work such as closet changes without change to the room arrangement.

7) **SAFETY**

The project shall be kept in a safe condition at all times, including but not limited to the following:

- a) Capping off open ends of piping at same time fixtures are removed (by a licensed plumber).
- b) Maintaining exposed electrical lines in safe condition at all times, including temporary supports, and no exposed ends of wire or dangling wires.
- c) Temporary lights at all times, including one 24 hour light left on at all times near the entrance door, except when there are permanent lights in place.

- d) No less than two 20lb "ABC" fire extinguishers shall be kept in the apartment for the duration of the project, whenever heat producing devices or procedures are in use, i.e., heat gun or paint stripping.
- e) Debris shall be removed on a regular basis, at least once each week.
- f) Hallways must be vacuumed and cleaned every day.

8) RE-LOCATIONS/NEW SERVICE

- a) Wherever an apartment bathroom or kitchen is being refurbished, including removal of cabinetry and/or tile finishes, the plumbing branch lines shall be replaced back to the riser with accessible shut-off valves installed. This requirement may be waived by the Board if it is determined that the piping was previously replaced. Access panels are required.
- b) If your renovation involves work on the bathroom or kitchen, you will be required, at your own expense, to expose and replace branch lines and shut-off valves, and if replacing a shower or bathtub, you must replace all plumbing waste traps during the course of work, also at your own expense.
- c) If the Board approves re-locations of plumbing fixtures, the Shareholder shall be solely responsible to repair any structural damage found in the floor when opened. (The provision will be waived if the Board is made aware in writing of the existence of a problem before the alteration is submitted.)
- d) All new water piping shall be insulated with ½" thick closed cell foam insulation.
- e) If the alteration includes an increase in the electrical load for the apartment, an electrical load letter for the entire apartment shall be submitted meeting the requirements of the National Electric Code, prepared by a licensed electrician, licensed engineer, including capacity of the existing service.
- f) If the Corporation's Designated Engineer the alteration determines that increased service would be required, the design shall be modified so as to eliminate such increase, unless specifically approved by the Board in writing.
- g) When an increase in electric service is approved there shall be a charge assigned by the Board in anticipation of the eventual upgrade in the building electrical service when there is no remaining additional capacity.
- h) No electric riser or intercom riser shall be re-located.
- i) Whenever a new electrical panel is installed, it shall be circuit breaker type with a main circuit breaker.
- j) When an electrical panel is re-located, the original panel shall remain in place as a junction box with an access panel.

9) **PLUMBING**

The plumbing service to each resident shall comply with all of the following specifications:

- a) All plumbing work must be performed by a licensed plumber.
- b) All branch piping shall be replaced back to the supply riser, and back to the waste/vent stack. (This provision will be waived if the Board is made aware in writing of the existence of a reason to do this is submitted before the alteration is approved.) New accessible shut off valves are required.
- c) Plumber must check existing waste and vent lines to be free of obstruction.
- d) Approved back flow prevention devices shall be provided on water supplies to hard piped refrigerator ice maker, dishwasher, and clothes washer (if allowed), where there is a risk of syphon action, to the extent required by Code.
- e) Provide new master shut-off valves, quiet type check valves, and branch lines for hot and cold water supply for rehabbed bathrooms and kitchen. All valves must be full port, of US manufacture. All new copper piping from the master shut-off valve to each fixture.
- f) Check valves shall be furnished on branch piping for hot and cold water adjacent to the master shut-off valves. Check valves must be quiet type.
- g) Provide new accessible shut-off valves at each fixtures, as follows:
 - (a) Bathrooms
 - (i) Hot water master shut-off valve
 - (ii) Cold water master shut-off valve
 - (iii) Hot water shut-off valve at lavatory
 - (iv) Cold water shut-off valve at lavatory
 - (v) Shower valve, approved for use (temperature range 110°F to 120°F)
 - (vi) Cold water shut-off valve at toilet
 - (b) Kitchen
 - (i) Cold water shut-off valve
 - (ii) Hot water shut-off valve
 - (iii) Vacuum breaker for refrigerator and dishwasher water supply
- h) No valves are to be concealed behind the wall. All valves installed in connection with the work are to be installed on the surface of the wall finish to provide convenient and appropriate access.
- i) The building is to be notified of any potential damage, leaks, defects, etc that are observed while performed any and all plumbing work. Any failure to notify the building of said damage will become the responsibility of the resident should this be discovered at a later date.

- j) In all locations that plumbing work is being performed, all hot and cold water supply lines must be insulated appropriately, with minimum ½" thick closed cell foam insulation regardless of existing conditions.
- k) Water hammer arrestors of an approved type must be installed in all fixture/water supply connections.
- l) All valves must be installed during the rough plumbing installation and all attempts must be made to minimize the number of water shut-offs.
- m) Tub/shower walls are to have a layer of cementitious board, and are to be lined with a layer of Laticrete 9235 waterproofing membrane with all seams lapped 4".
- n) Shower bases are to be fitted to a new lead pan coated with polymer material both sides to prevent electrolytic and chemical reaction.
- o) The toilet flange must be set on top of the height of the finished floor and secured properly. No offset flanges will be permitted.
- p) Provide a riser diagram for waste and supply piping wherever there is a fixture re-location or change in type (i.e. tub to a shower).

10) GAS PIPING WORK

- a) When the gas piping is extended from the gas shut-off by more than approximately 3'-0", the gas "whip" will not be sufficient length to remove the appliance. (Gas whip must be 5'-0" long or less.) If piping is extended so that this distance is exceeded, the building may allow gas line re-locations for benefit of quality of life, depending on the particular circumstances. If the Board allows the gas extension, it must be legally done, including filing with NYC DOB and notification to Con Edison. A proper DOB permit should be obtained for gas piping changes. No self-certifications by plumber. Inspection must be by DOB.
- b) The following notes shall be placed on the drawings:
 - i) All gas piping work shall meet the requirements of the NYC Building Code.
 - ii) The existing and new gas shut-offs shall be accessible.
 - iii) Plumbing work shall be filed indicating a gas piping extension.
 - iv) No gas piping shall be located in the floor without a specific permit.
- c) Con Edison shall be notified of the work.

- d) It is a specific requirement that the completed gas piping shall be tested by Contractor and inspected and signed off by DOB. Self-certification by plumber shall not be allowed.
- e) Prior to commencing any work, the licensed plumber shall pressure test the gas supply back to the same point required by NYC DOB. If the loss in pressure exceeds Code limits, no gas piping work may be done until repairs are made at the Shareholder's expense. Should it not be possible to make the necessary repairs due to limited access to the gas riser or for other reasons, then no gas piping changes will be allowed.
- f) Pressure test shall be at 3psig after a new valve and tee immediately adjacent to the gas shut-off. Shut-off valve shall be tested with soap film.
- g) IMPORTANT NOTE: IF THERE IS NO EXISTING GAS SHUT-OFF VALVE IN THE APARTMENT, NO GAS PIPING CHANGES WILL BE ALLOWED.

11) ELECTRICAL

- a) All electrical work must be performed by a licensed electrician.
- b) Total amperage for the apartment must be verified with the Superintendent to avoid overloading the main fuse.
- c) Duplex outlets within 6'-0" of sinks are to be GFCI type.
- d) No electrical upgrades will be allowed without written approval of the Corporation.

12) STRUCTURAL

- a) The work may only proceed in strict compliance with drawings submitted to the Corporation and filed and approved by NYC Department of Buildings.
- b) It shall be the Apartment Owner's responsibility to assure that the Registered Architect or Professional Engineer named for Controlled Inspection as required by Code has the appropriate qualifications.
- c) The Architect or Engineer responsible for Controlled Inspection shall personally supervise all aspects of the structural work and structural stability.
- d) The Contractor shall take all steps necessary in shoring the work temporarily until all permanent work is in place.
- e) If a new floor opening is allowed for a duplex apartment stairs, the slab to be removed shall be shored before any cutting work is done so that pieces can be removed from above as they are cut out.

- f) Any new structural framing shall be set in place and permanently welded to the existing supporting beams before the slab opening is cut.
- g) Specific attention shall be given to prevent dust from leaving the apartment by sealing all doors and assuring that no adjacent apartment windows are left open.
- h) Extra protection shall be provided in corridors in the course of removing debris.
- i) The professional of record alone must agree to be in responsible charge of the structural work. Their final design must be submitted for the reviewing engineer's comments, however it is not the responsibility of the reviewing engineer to design, certify, monitor, inspect, or take on any professional responsibility for any aspect of the project.

Shareholder

Shareholder

By: _____
Management

ADDENDUM B
PROJECT SUMMARY

PLEASE PROVIDE THE FOLLOWING:

- Narrative Description of the proposed project
- Commencement Date: _____
- Completion Date: _____
- Time periods for the specific phases of Work
- Detailed plans, drawings and specifications for the equipment proposed to be installed and/or the alterations proposed to be made which, if so required by the Corporation, have been prepared by a licensed architect or engineer. Such plans, drawings and specifications include a room by room list of the equipment to be installed and the alterations to be made.

ADDENDUM C

ASSUMPTION OF ALTERATION AGREEMENT

WHEREAS, simultaneously with its execution and delivery of this Assumption of Alteration Agreement the undersigned is becoming the owner of the shares in the _____(the “Lessor Corporation”) and the proprietary lease appurtenant to Apartment ____ (the “Apartment”) in the building known as _____; and

WHEREAS, a prior owner of the Apartment and the Lessor Corporation entered into an Alteration Agreement dated _____(the “Alteration Agreement”), a copy of which is attached hereto,

WHEREAS, the Alteration Agreement (i) provides that any person acquiring the Apartment shall assume the obligations of the Shareholder under the Agreement and (ii) authorizes the Corporation not to consent to or register the transfer of the Apartment to any person unless and until such person assumes the obligations of the Shareholder under the Agreement

NOW, THEREFORE, in order to induce the Corporation to consent and register the transfer of the Apartment to the undersigned, the undersigned hereby ASSUMES AND AGREES TO PERFORM AND OBSERVE all the terms, covenants and conditions of the Alteration Agreement to be performed or observed by the Shareholder thereunder (including the provisions of Section 15 thereof pertain to future transfers).

Henceforth, the term “Shareholder” as used in the Alterations Agreement shall include the undersigned. Any breach of this Assumption of Alterations Agreement or of the Alterations Agreement shall constitute a breach of the lease appurtenant to the Apartment. This Assumption of Alteration Agreement shall be binding on the undersigned and [her][his] estate, heirs, executors, administrators, personal representatives, successors and assigns.

New York, New York

Date: _____

STATE OF NEW YORK)

: ss.:

COUNTY OF NEW YORK)

On this _____ day of _____, 20____, before me personally came _____, to me known and known to me to be the individual described in and who executed the foregoing instrument, and duly acknowledged to me that [she][he] executed the same.

Notary Public

ADDENDUM D
CONTRACTOR INFORMATION

PLEASE PROVIDE THE FOLLOWING:

- Schedule of all contractors, subcontractors and suppliers who will perform or provide materials for the Work including respective emergency contact information
- Copy of Licenses and Certifications for all Contractors, Electricians and Plumbers
- Copies of all agreements entered into with such contractors and subcontractors

ADDENDUM E

CONTRACTOR INSURANCE

Each of Shareholder's contractors shall provide insurance of the types and in not less than the limits set forth below with a company or companies satisfactory to the Corporation, licensed to do business in the State of New York, and all such policies shall name the Corporation, the Corporation's officers, directors and shareholders, the shareholder(s) below Shareholder's apartment, the Corporation's Designated Engineer and the Managing Agent as additional named insureds. No diminution of limits of insurance will be permitted.

(i) WORKER'S COMPENSATION as required by law together with Employer's Liability Insurance and Disability Benefits Insurance as required by the State of New York.

(ii) COMMERCIAL GENERAL LIABILITY including Contractor's Liability and Blanket Contractual Liability (oral or written), all on an occurrence basis with Personal Injury Coverage, which shall include mental anguish as well as standard conditions, and Broad Form Property Damage, without any exclusion relating to Explosion, Collapse and Underground Property Damage. The policy will contain the "Broad Form Comprehensive General Liability" endorsement in Section 1 in such form; the exclusion pertaining to liability assumed by the Contractor under any contract or agreement (Section II Section B (1)) is to be deleted. The Completed Operations Coverage is to extend for a period of one year following termination of the Work and Contractual Indemnity Coverage is also to extend for one year following termination of the Work. The policy is also to include (i) Owners Protective Liability Coverage, (ii) Knowledge of Occurrence and Notice of Occurrence endorsements and (iii) Unintentional Errors and Omissions clause. The policy shall also include coverage with respect to asbestos exposure if the Work involves any asbestos-containing material, and shall not include a sunset clause without the Corporation's consent.

\$1,000,000 BODILY INJURY & PROPERTY DAMAGE¹
(combined single limit)

(iii) COMPREHENSIVE AUTOMOBILE LIABILITY, including non-owner-ship and hired car coverage, as well as owned vehicles:

\$1,000,000 BODILY INJURY & PROPERTY DAMAGE (combined single limit)

*Amounts of insurance required may be higher for major renovations as designated and determined by the Board of Directors.

(iv) UMBRELLA LIABILITY, BODILY INJURY, PERSONAL INJURY AND PROPERTY DAMAGE if umbrellas are written in more than one company any layers above the first one shall follow the form of the primary umbrella.

\$5,000,000 COMBINED* (combined single limit)

Prior to the commencement of any Work hereunder, detailed certificates of insurance including the actual policies and all endorsements shall be furnished to the Corporation showing that such insurance is in full force and the premiums due thereunder have been paid. Such certificates shall provide that the said insurance may not be canceled, terminated or modified without ten (10) days written advance notice thereof to the Corporation. The Contractor shall promptly furnish the Corporation with copies of any endorsements subsequently issued amending insurance coverage or limits.

In the event of the failure of the Contractor to furnish and maintain such insurance, the Corporation shall have the right, at its option, at any time:

(i) to revoke permission to perform the Work and to deny entry into the Building of all workers, except that if such workers are escorted by a member of the Building's staff, they shall be permitted to remove their tools and supplies, or

(ii) to take out and maintain the said insurance for and in the name of the Corporation, the Contractor or the Shareholder and, in such a case, the Shareholder agrees to pay the cost thereof and to furnish all information and consents necessary to permit the Corporation to take out and maintain such insurance for and in the name of the Corporation, the Contractor or the Shareholder.

Compliance with the foregoing requirements to carry insurance and furnish certificates shall not relieve the Shareholder from liability assumed under any provisions of this Agreement.

The Contractor's insurance policy shall also contain in substance the following endorsement:

This insurance shall not be invalidated should the insured waive, in writing, prior to a loss, any or all right of recovery against any party for the loss occurring to the property described herein.

Nothing in this Addendum shall constitute a waiver of or limitation of any other rights or remedies the Corporation may have for consequential damages or otherwise.

It is a specific requirement that each prime contractor used by an Apartment Owner is properly insured, and work of each Prime Contractor will be considered a separate alteration. When the Prime Contractor has sub-contractors, the Prime Contractor shall provide evidence in acceptable form that his insurance covers the work of all sub-contractors, as well as employees and agents.

ADDENDUM F

CONTRACTOR INDEMNITY AGREEMENT:

Whereas _____, *having offices at* _____, *as* “Indemnitor”, is and will be performing certain work at the premises **433 W 34th Street, New York, N.Y. 10001 Apt. __** (the “Property”) pursuant to purchase order or other agreement between _____ and _____ *Shareholder* _____. The Property’s owner, **433 W 34th Owners Corp.** and its Managing Agent, **Orsid Realty Corp. d/b/a Orsid New York**, (each individually and collectively an “Indemnatee”) and Indemnitor hereby agree that the following provisions shall be incorporated by reference into each such Purchase Order or other agreement:

INDEMNIFICATION AGREEMENT

To the fullest extent permitted by law, Indemnitor agrees to indemnify, defend and hold harmless Indemnatee from any and all claims, suits, damages, liabilities, professional fees, including attorneys’ fees, costs, court costs, expenses and disbursements related to death, personal injuries or property damage (including loss of use thereof) arising out of or in connection with the performance of the work of the Indemnitor, its agents, servants, subcontractors or employees, or the use by Indemnitor, its agents, servants, subcontractors or employees, of facilities owned or leased by the Indemnatee. This agreement to indemnify specifically contemplates full indemnity in the event of liability imposed against the Indemnatee and/or Managing Agent without negligence and solely by reason of statute, operation of law or otherwise, and partial indemnity in the event of any actual negligence on the part of Indemnatee any liability imposed over and above that percentage attributable to actual fault, whether by statute, by operation of law or otherwise.

INSURANCE PROCUREMENT

Indemnitor shall obtain and maintain at all times during the term of this agreement, at its sole cost and expense, the following insurance (a) workers compensation insurance with statutory limits and employer’s liability coverage of not less than \$500,000; (b) commercial general liability insurance with a minimum limit of \$1,000,000 per occurrence and \$2,000,000 in the aggregate, which insurance shall cover the following: premises and operations liability, products/completed operations, broad form property damage, broad form contractual liability, personal injury and independent contractor’s liability; (c) \$1,000,000 automobile liability including non-ownership and hired car coverage, as well as owned vehicles. (c) \$5,000,000 combined Umbrella Liability limit.

Indemnitor shall cause Indemnatee to be named as an Additional Insured by use of the latest version of ISO endorsement CG 20 26. To the extent that coverage is not available through the use of the CG 20 26 form but rather is written on a “Blanket” Additional Insured basis as required by written contract then this instrument shall constitute and hereby serve to satisfy the “written contract” requirement. Indemnitor shall, by specific endorsement to its primary liability policy, cause the coverage afforded to the additional insureds thereunder to be primary to and not concurrent with other valid and collectible insurance available to Indemnatee. All other valid and collectible insurance available to Indemnatee shall be applied on an excess basis over and above all layers of Indemnitor’s insurance, aforementioned, whether primary or excess. Indemnitor shall, by specific endorsement to its umbrella/excess liability policy, cause the coverage afforded to the Indemnatee thereunder to be first tier umbrella/excess coverage above the primary coverage afforded to Indemnatee and not concurrent with or excess to other valid and collectible insurance available to Indemnatee.

(Contractor/subcontractor as Indemnitor)

By: _____ (Please Print)

Dated: _____

Signed _____

433 W 34th Owners Corp. and
Orsid Realty Corp d/b/a Orsid New York
(as Indemnatee)

By: _____ (Please Print)

Signed: _____

Dated: _____

ADDENDUM G – Letter to Neighbors

NOTIFICATION TO NEIGHBORS

To: _____

Apartment _____

Re: **Alteration of our Apartment**

Dear Neighbor:

Pursuant to the Rules of the building, we hereby notify you that on _____, we will commence renovation of our apartment _____ in the building.

We will instruct our contractors to exercise care to minimize the noise during construction. It would be impossible to eliminate all the noise completely and hope you will understand and bear with us during this period.

We expect that the renovation will be completed within _____ calendar days.

In addition, pursuant to the Rules, we are required to notify you that we will indemnify you for any damages you sustain as a result of the renovation. For this purpose we request that you allow the superintendent or our designated representative to inspect your apartment prior to commencement of work.

Please contact us to schedule an inspection. Very truly yours,

Home () _____

Office () _____

Date: _____

cc: Orsid Realty Corp.
156 West 56th Street, 6th Floor
New York, New York 10019
Attn: Allison Amendolare
aamendolare@orsidny.com

Request for Taxpayer Identification Number and Certification

Give Form to the
requester. Do not
send to the IRS.

► Go to www.irs.gov/FormW9 for instructions and the latest information.

1 Name (as shown on your income tax return). Name is required on this line: do not leave this line blank.	
2 Business name/sole proprietorship entity name, if different from above	
3 Check appropriate box for federal tax classification of the person whose name is entered on line 1. Check only one of the following seven boxes.	4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3):
☐ Individual/sole proprietor or single-member LLC	Exempt payee code (if any) _____
☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=Partnership) ► _____ Note: Check the appropriate box on the line above for the tax classification of the single-member owner. Do not check LLC if the LLC is classified as a single-member LLC that is disregarded from the owner unless the owner of the LLC is another LLC that is not disregarded from the owner for U.S. federal tax purposes. Otherwise, a single-member LLC that is disregarded from the owner should check the appropriate box for the tax classification of its owner.	Exemption from FATCA reporting code (if any) _____
☐ Other (see instructions) ► _____ (Applies to accounts maintained outside the U.S.)	
5 City, state, and ZIP code	
6 City, state, and ZIP code	
7 List account number(s) here (optional)	

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. Also see *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number
ITO -[D -[I I I I
OR
Employer identification number

Part II Certification

Under penalties of perjury, I certify that:

- The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
- I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
- I am a U.S. citizen or other U.S. person (defined below); and
- The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign
Here

Signature of
U.S. person ►

Date ►

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to www.irs.gov/FormW9.

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following:

- Form 1099-INT (interest earned or paid)

- Form 1099-DIV (dividends, including those from stocks or mutual funds)
 - Form 1099-MISC (various types of income, prizes, awards, or gross proceeds)
 - Form 1099-8 (stock or mutual fund sales and certain other transactions by brokers)
 - Form 1099-S (proceeds from real estate transactions)
 - Form 1099-K (merchant card and third party network transactions)
 - Form 1098 (home mortgage interest), 1098-E (student loan interest), 1098-T (tuition)
 - Form 1099-C (canceled debt)
 - Form 1099-A (acquisition or abandonment of secured property)
- Use Form W-9 only if you are a U.S. person (including a resident alien). to provide your correct TIN.

If you do not return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See What is backup withholding, later.